

		facts extrinsic to the complaint to strike the class allegations of the TAC. This is improper. Nor can Defendants bypass this basic requirement for a motion to strike by combining it with a motion to compel arbitration. Code of Civil Procedure section 1281.2 as well as CRC, rule 3.1330 apply only to agreements “<i>to arbitrate a controversy</i>,” not to an agreement to waive class claims. (CCP, § 1281.2, emphasis added.) As explained above, the EFAA applies here to prohibit the enforceability of the parties’ predispute agreement <i>to arbitrate</i> any individual claims in Plaintiff’s case. To the extent Defendants also move to enforce the parties’ agreement <i>to waive class claims</i>, such motion is purely a motion to strike class allegations, and the requirements for a motion to strike class allegations govern this part of Defendants motion. Defendants have failed to demonstrate that they satisfy the requirements for a motion to strike class allegations, which must be based on invalidity of the class allegations revealed on the face of the complaint. Accordingly, the Court also DENIES Defendants’ motion to strike the class allegations of the TAC. Plaintiff shall give notice.
108	De La Rosa vs. PLAN888 Inc 2025-01495101	1. Motion to Compel Answers to Special Interrogatories 2. Motion to Compel Production Plaintiff Vanessa De La Rosa’s (1) Motion to Compel Defendant Plan888 Inc. dba Plan B’s Responses to Special Interrogatories, Set One, and Request for Sanctions ; and (2) Motion to Compel Defendant Plan888 Inc. dba Plan B’s Responses to Demand for Production of Documents, Set One, and Request for Sanctions are GRANTED. (Code Civ. Proc., §§ 2030.290, 2031.300.) Defendant is ORDERED to serve verified, non-evasive responses without objection to Plaintiff’s 1st set of special interrogatories demands for production within 14 days of notice. To be clear, any response to the demands for production shall include the production of all responsive documents. Sanctions in the total amount of \$3,900 (or \$1,950 per motion) are GRANTED in favor of Plaintiff and against Defendant, payable to Plaintiff’s counsel within 30 days of notice. Moving party shall give notice of all of the above.